

(b) "the amusements" means any swings or roundabouts or other fairground amusements, but shall not be taken to include any puppet or marionette show, or any such vessel as aforesaid, or any children's pony-carriage drives, or any special illuminations, or any children's zoo, or any underground grotto or series of grottos or elevated tree walk if designed for visual or scenic effect, or any boating lake, or any miniature railway adapted wholly or mainly for children to ride in.

(4) Subsection (1) of this section shall not authorise the use of any place on Sunday for a stage play, variety entertainment or circus turn, for a contest or display of boxing or wrestling, or for public dancing.

14 Geo. 6.
c. 28.

(5) For the purposes of the Shops Act, 1950, the place where any exhibition above referred to is being held, and the festival gardens so referred to, shall be treated as falling within the description "gallery, museum, garden, park or ancient monument under the control of a public authority or university" in sub-paragraph (1) of paragraph 1 of the Fifth Schedule to the said Act (which sub-paragraph relates to the sale on Sunday at the places therein mentioned of guide books, postcards etc.).

1 Car. 1. c. 1.
29 Car. 2. c. 7.
21 Geo. 3.
c. 49.

(6) In this section the expression "the Sunday Observance Acts, 1625 to 1780," means the Sunday Observance Act, 1625, the Sunday Observance Act, 1677, and the Sunday Observance Act, 1780.

Short title.

2. This Act may be cited as the Festival of Britain (Sunday Opening) Act, 1951.

CHAPTER 15

Local Government (Scotland) Act, 1951

ARRANGEMENT OF SECTIONS

Section.

1. Amendment of law relating to limitation of annual expenditure by town councils for certain purposes.
 2. Increase of limit on special district rates.
 3. Financial provision.
 4. Amendment of 10 & 11 Geo. 6. c. 43, s. 259.
 5. Citation.
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An Act to make provision for increasing the amount which may not be exceeded by town councils in Scotland in respect of certain expenditure ; for raising the limit on special district rates leviable by county councils in Scotland for certain purposes ; and to restrict the power of county councils and town councils in Scotland to borrow money for certain purposes.

[15th February 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows:—

1. Section one hundred and ninety-one of the Local Government (Scotland) Act, 1947 (which imposes limits on certain annual expenditure by county and town councils) shall have effect as if—

- (1) in paragraph (a) of subsection (3) for the words "three shillings" there were substituted the words "four shillings and sixpence"; and
- (2) at the end of the proviso to the said subsection (3) there were inserted the following paragraph:—

"(iii) where the Secretary of State is satisfied as regards any town council that the produce of a rate of four shillings and sixpence per pound calculated as aforesaid will not be sufficient to meet the net expenditure mentioned in paragraph (a) of this subsection incurred or likely to be incurred by that town council in any year or years, the Secretary of State shall have power to direct that the said paragraph (a) shall have effect as regards such expenditure of that town council for that year or those years as if for the limit of four shillings and sixpence per pound there were substituted such increased limit or limits as may be specified in the direction."

2. Section two hundred and twenty-five of the Local Government (Scotland) Act, 1947 (which provides for the levying of special district rates) shall have effect as if in the proviso to subsection (1) for the word "ninepence" there were substituted the words "two shillings and sixpence".

3. Any increase in the Exchequer Equalisation Grant payable under Part II of the Local Government Act, 1948, which is attributable to increased expenditure incurred by a town or a county council in pursuance of either of the two foregoing sections shall be paid out of moneys provided by Parliament.

Amendment of law relating to limitation of annual expenditure by town councils for certain purposes.
10 & 11 Geo. 6. c. 43.

Increase of limit on special district rates.

Financial provision.
11 & 12 Geo. 6. c. 26.

Amendment of 10 & 11 Geo. 6. c. 43, s. 259. 4.—(1) Subsection (2) of section two hundred and fifty-nine of the Local Government (Scotland) Act, 1947 (which restricts the power of county and town councils to borrow money) shall, during the continuance in force of this section, have effect as if the words “ unless the resolution to borrow has been agreed to by two-thirds of the members of the council present and voting at the meeting at which the resolution is passed ” were omitted.

(2) This section shall continue in force until the thirty-first day of December, nineteen hundred and fifty-three, and no longer unless Parliament otherwise determines.

2 & 3 Geo. 6. c. 62. Citation. (3) The Defence (Local Government) (Scotland) Regulations, 1939, made by His Majesty in Council under the Emergency Powers (Defence) Act, 1939, shall cease to have effect.

5. This Act may be cited as the Local Government (Scotland) Act, 1951, and the Local Government (Scotland) Act, 1947, the Local Government Act, 1948, as that Act applies to Scotland, and this Act may be cited together as the Local Government (Scotland) Acts, 1947 to 1951.

CHAPTER 16

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March, one thousand nine hundred and fifty-one and one thousand nine hundred and fifty-two. [21st March 1951.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Issue of £13,835,847 out of the Consolidated Fund for the service of the year ending 31st March, 1951.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom and apply towards making good the supply granted to His Majesty for the service of the year ending